

permitting Congress to seize the confidential papers of a President.

F

In concluding that Title I on its face violates the principle of separation of powers, I do not address the issue whether some circumstances might justify legislation for the disposition of Presidential papers without the President's consent. Here, nothing remotely like the *particularized need* we found in *United States v. Nixon* has been shown with respect to these Presidential papers. No one has suggested that Congress will find its own "core" functioning impaired by lack of the impounded papers, as we expressly found the judicial function would be impaired by lack of the material subpoenaed in *United States v. Nixon*.

I leave to another day the question whether, under exigent circumstances, a *narrowly defined* congressional demand for Presidential materials might be justified. But Title I fails to satisfy either the required narrowness demanded by *United States v. Nixon* or the requirement that the coequal powers of the Presidency not be injured by congressional legislation.

II

Privacy

The discussion of separation of powers concerns, of course, the structure of government, not the rights of the sole individual ostensibly affected by this legislation. But Title I touches not only upon the independence of a coordinate branch of government, it also affects, in the most direct way, the basic rights of one named individual. The statute provides, as we have seen, for governmental custody over—and review of—all of the former President's written and recorded materials at the time he left office, including diary recordings and conversations in his private residences outside Washington, D. C. § 101 (a)(2).

The District Court was deeply troubled by this admittedly